

Mst Musarat Raees
alias Musarat Gull

Mushtaq Ahmed etc

10.04.2014 Mr Allah Wasaya Malik, Advocate for petitioner.

Facts giving rise to the present Revision petition are that petitioner filed a suit for possession through pre-emption challenging the sale in favour of the respondents made through mutation No.2050 dated 30.06.2008 for a consideration of Rs.6,50,000/- (which petitioner alleges to be for Rs.500,000). Petitioner came to know about the alleged sale on 09.07.2008 at 6:00 p.m. when she was present at her home alongwith her husband Muhammad Raees Khan (PW3) and Sher Muhammad s/o Ramzan (PW2) who was the informant told her about the sale, immediately whereafter, she made Talab-e-Muwathibat.

2. On 11.07.2008, she sent written notices to respondents through registered post alongwith acknowledgment due and fulfilled the requirement of Talab-e-Ishhad. Thereafter, within the stipulated time she filed the suit alleging superior right of Pre-emption on the basis of being Shafi Sharik, Shafi Khalit and Shafi Jar.

3. The suit was resisted by the respondents on multifarious grounds amongst which principal defense was non performance of Talabs.

4. Out of the pleadings of the parties, nine issues were framed, whereupon, both the parties led their respective evidence.

5. That vide judgment and decree dated 4.3.2010, suit of the petitioner was dismissed on the ground that she has not been able to prove Talab-e-Ishhad.

6. Feeling aggrieved of the judgment & decree passed by the trial court, petitioner preferred an appeal which also met the same fate and was dismissed on 27.07.2011 by Mr Ghulam Abbas Sial Additional District Judge Piplan.

7. Learned counsel for the petitioner contends that in order to defeat the rights of the petitioner, a higher sale price of Rs.650,000/- was quoted by the respondent whereas in fact the sale price was Rs.500,000/- It is further contended that all Talabs were performed in accordance with law and the requisite evidence was produced in order to prove the same but both the courts below could not appreciate the evidence and illegally decided the lis against the petitioner.

8. With special reference to Talab-e-Ishhad, it was contended that the notices Ex.P1 & P2 and postal receipts Ex.P3 & Ex.P4 were produced, which absolves her of the duty cast upon the pre-emptor under section 13 of the Punjab Pre-emption Act 1991. She emphasized that she performed her legal obligation but both the Courts below fell in error and decided against her.

9. I have considered the arguments of learned counsel for the petitioner and perused the record.

10. The main stay of both the impugned judgments is on the fact that petitioner has not been able to prove Talab-e-Ishhad.

11. For Talab-e-Ishhad, it is mandatory that within two weeks of Talab-e-Muwathibat, notice in writing attested by two truthful witnesses under registered cover acknowledgment due should be sent to the vendee. In case, it is disputed by the vendee that he never received the notice, the burden shifts on the pre-emptor to prove the issuance as well as service of the notice.

12. In case in hand as respondents in their written statement as well as in evidence, denied the issuance of notices and its corresponding service upon them, it was mandatory for the petitioner to have proved the issuance and receipt / refusal of the notices by producing cogent and confidence inspiring evidence, which in this case, is lacking.

13. The Hon'ble Supreme Court of Pakistan in judgments reported as **2007 SCMR 1105** (Muhammad Bashir and others Vs Abbas Ali Shah), **2011 SCMR 762** (Bashir Ahmed Vs. Ghulam Rasool) **PLD 2013 SC 193** (Abdul Khan Vs Ramzano Bibi), **2013 SCMR 866** (Allah Ditta through L.Rs and others Vs Muhammad Anar) have laid down parameters in case where a vendee denies performance of Talab-e-Ishhad, how is the pre-emptor suppose to prove the same. The resume of the above judgments is that he has to produce / prove the following:

- a) Notices of Talb-e-Ishhad;
- b) Its two truthful attesting witnesses;
- c) Postal receipts;
- d) Acknowledgement Due;
- e) Postman who effected the service (both acceptance or refusal).

14. In the case in hand although petitioner produced attesting witnesses of the notices and also produced the postal receipts and while thriving on presumption attached with Article 129 of the Qanoon-e-Shahdat Order 1984 read with section 27 of the General Clauses Act 1897, lost sight

of the fact that this presumption is rebuttable and once respondents denied the service on oath, the onus shifted on the petitioner, who was relying on the notices unless there is other available evidence about service. In the present case when the factum of service was denied by the respondents, it was mandatory for the petitioner to prove and produce acknowledgement due and the postman which keeping in view the judgments supra was a sine qua non to prove Talab-e-Ishhad. By not fulfilling the necessary requisites, both the courts below rightly decided issue No.2 against the petitioner for want of evidence.

15. In view of the discussion made above, it is clear and obvious that petitioner has not been able to prove Talab-e-Ishhad which was mandatory for establishing her right. By upholding the findings rendered by both the courts below, no case for interference is made out and this petition is dismissed in limine.

(FAISAL ZAMAN KHAN)
JUDGE

Irfan*

Approved for Reporting